

22NWCV00692 22NWCV00692

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-07-02

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Case Number: 22NWCV00692 Hearing Date: July 2, 2026 Dept: L

I.

Defendant Monique

Zaky's Motion for Order to Compel Plaintiff Truworks Construction's Responses to Form Interrogatories, Set One, is GRANTED.

II.

Defendant Monique

Zaky's Motion to Deem Requests for Admissions, Set One, Admitted is DENIED as moot.

Defendant to give
notice.

Background

This is an action for breach of construction contract. On August 10, 2022, Plaintiff Truworks Construction ("Plaintiff") filed this action against Defendant Monique Zaky ("Defendant") and Does 1 to 30. The Complaint alleges the following causes of action: 1) Breach Of Contract, 2) Account Stated, and 3) Open Book Account.

On January 19, 2026, Defendant served 1) Form Interrogatories, Set One, and 2) Request for Admissions, Set One, on Plaintiff, through Plaintiff's former counsel. (Jalali-Bidgoli Decls., ¶ 3, Exhs. A-B.) Responses were due on February 20, 2026. (Jalali-Bidgoli Decls., ¶ 4.)

On March 19, 2026, the Court granted Plaintiff's former counsel's Motion to be Relieved as Counsel. (3/19/26 Minute Order.) The Court notes that

Plaintiff filed a Substitution of Attorney on June 15, 2026.

Defendant now moves for orders 1) compelling Plaintiff to serve verified responses, without objections, to Form Interrogatories, Set One, and 2) deeming admitted the truth of all matters specified in Defendant's Requests for Admission, Set One, served on Plaintiff. Defendant requests sanctions in the amount of \$1,410.00 for each Motion.

The Court will address each Motion in turn.

I.

Motion to Deem

Requests for Admissions, Set One, Admitted

Legal Standard

Where there has been no timely response to a request for admission under Code of Civil Procedure section 2033.010, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. (Code of Civ. Proc., § 2033.280, subd. (b).)

Discussion

On June 22, 2026, Plaintiff filed the Declaration of Mainak D'Attaray representing that Plaintiff's counsel has served responses to Requests for Admission, Set One, verified and without objections on Defendants. (D'Attaray Decl., ¶ 3, Exhs. 1-4.)

The Motion to Deem Requests for Admissions, Set One, Admitted was originally heard on June 23, 2026. The Court continued the Motion to today's date so that the parties could further meet and confer. (6/23/26 Minute Order.)

That same day, Plaintiff filed an opposition to the Motion to Deem Requests for Admissions, Set One, Admitted stating that the Motion must be denied as moot where Plaintiff served verified responses without objections to the Requests for Admissions on June 21, 2026. (D'Attaray Opp. Decl., ¶ 3, Exhs. 1-4.) Plaintiff concedes that sanctions are mandatory but requests a reduction considering that counsel was recently substituted in

and has not yet received Plaintiff's client file from Plaintiff's former attorney.

In reply, Defendant argues the full sanctions amount is warranted. Plaintiff has engaged in "a pattern of delay and noncompliance that has existed throughout this litigation and has repeatedly required Defendant to expend substantial time and resources merely to move this case forward." (Reply, 2:10-12.)

The Court finds that Plaintiff has served verified responses without objection to Defendant's Requests for Admission prior to the Motion hearing. Accordingly, the Motion to Deem Requests for Admissions, Set One, is DENIED as moot.

The Court finds sanctions are mandatory even where responses were served after the Motion was filed. (See Code Civ. Proc., § 2033.280, subd. 2(c); Cal. Rules of Court, Rule 3.1348(a).) Defendant is awarded \$500.00 in reduced sanctions, payable within 60 days.

II.

Motion for Order
to Compel Plaintiff's Responses to Form Interrogatories, Set One

Legal Standard

If a party fails to timely respond to interrogatories, the party to whom the request is directed waives any right to exercise the option to produce writings under Code Civ. Proc., § 2030.230, and waives any objection, including one based on privilege or on the protection for work product. (Code Civ. Proc., § 2030.290, subd. (a).) 22 The party who propounded the discovery request may bring a motion to compel responses to the interrogatories. (Code Civ. Proc., § 2030.290, subd. (c).)

Discussion

Defendant argues that Plaintiff has failed to provide responses to Form Interrogatories, Set One, by the February 20, 2026 deadline or thereafter. (Jalali-Bidgoli Decl., ¶ 9.)

No opposition has been filed as of July 1, 2026.

The Court finds that Plaintiff has failed to provide timely responses to Form Interrogatories, Set One.

Accordingly, Defendant's Motion for Order to Compel Plaintiff's Responses to Form Interrogatories, Set One, is GRANTED. Plaintiff is ordered to provide Code-compliant, objection-free responses with 30 days of this order.

Defendant is awarded \$250.00 in reduced sanctions, payable within 60 days.